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US AIR FORCES IN EUROPE (USAFE)

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Personnel

EMPLOYMENT OF LOCAL NATIONAL EMPLOYEES AT OTHER THAN THEIR REGULAR PLACE OF WORK OR DOMICILE (GERMANY)

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This instruction implements AFPD 36-7, *Employee and Labor-Management Relations.* It contains implementing provisions on Attachment R of the Collective Tariff Agreement of 16 Dec 1966 for the Employees of the Sending States Forces in the Federal Republic of Germany (CTA II), as well as out-of-tariff provisions regarding benefits and compensation of employees for expenses that arise in connection with employment outside the regular place of work or domicile, or duty trips performed at the permanent duty station. This instruction also contains policy and procedures with regard to out-of-tariff benefits in case of appointment or transfer of employees from outside of the commuting area of the new permanent duty station. It applies to all employees of the US Forces in the Federal Republic of Germany administered by a US Air Force Civilian Personnel Flight (CPF) under the terms of the CTA II. It does not apply to Air Force Reserve Command (AFRC) or Air National Guard (ANG) units. Ensure that all records created as a result of processes prescribed in the publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records,* and disposed of in accordance with the Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/rims.cfm**. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using Air Force (AF) Form 847, *Recommendation for Change of Publication;* route AF Forms 847 from the field through the appropriate functional's chain of command.

SUMMARY OF CHANGES

This document is substantially revised and must be completely reviewed. This revision reflects all legal, tariff, and administrative changes since the last revision in 1997. The attachments were revised comprehensively and the former attachments 8 *(Allowances on Transfer or Recruitment from Outside the Commuting Area*), 9 (*Reimbursement of Moving Expenses)*, and 12 *(Commuters Allowance)* are merged into the new Attachment 7 *(Payments in Cases of Transfers or Appointments from Outside the Commuting Area).* The previous attachments 10 *(Special Provisions for Civilian Service Unit Personnel)*, 11 *(Reimbursement of Employment Interview Travel Expenses)*, and 13 *(Maintenance Subsidy)* were rescinded entirely.

1. General/Content. Attachment R, CTA II outlines the basic tariff provisions for reimbursement of expenses incurred while performing official duty travel, duty trip, or employment outside the permanent duty location. Implementing instructions on Attachment R as well as out-of-tariff provisions in connection with appointment of employees from outside the commuting area or employment outside the regular place of work or domicile are contained in the appendices as listed below:

1.1. **Attachment 1** contains general provisions and instructions governing temporary duty (TDY) travel and implements CTA II, AttachmentR, Part I, General Provisions.

1.2. **Attachment 2** implements CTA II, AttachmentR, Part II, Reimbursement of Transportation Costs.

1.3. **Attachment 3** implements CTA II, AttachmentR, Parts III and IV, Travel Allowance for Several-Day Duty Travel and Day Allowance for One-Day Duty Travel.

1.4. **Attachment 4** regulates the payment for duty travel outside Germany (CTA II, AttachmentR, Part V).

1.5. **Attachment 5** regulates the reimbursement of cost of return transportation of remains of deceased employees.

1.6. **Attachment 6** implements CTA II, AttachmentR, Part VI on official duty trips not qualifying as duty travel in the meaning of CTA II, AttachmentR, Part I.1a.

1.7. **Attachment 7** contains provisions for payments associated with an employee's transfer or recruitment from outside the commuting area.

2. Forms Prescribed:

2.1. USAFE Form 264, *Temporary Duty Back for Non-US Citizen Personnel (Germany)*;

2.2. USAFE Form 832, *Travel Expense Voucher (Non-US, Germany).*

3. Forms Adopted:

3.1. DD Form 1610, *Request and Authorization for TDY Travel of DOD Personnel.*

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Attachment 1

GENERAL PROVISIONS

The implementation provisions in this attachment refer to CTA II, AttachmentR, Part I.

A1.1. Definition of duty travel and travel orders (Paragraph I-1.a):

The conditions of duty travel are met if an employee is directed to temporarily perform official business or to participate in training or education measures outside his or her permanent duty location (municipality) at distances of 15 km or more from the place of duty.

A1.1.1. The place of duty is the location where the employee regularly reports for work (shop, office, or suchlike). Large area installations which extend over several municipalities are considered one duty location with the consequence that a trip, even if the distance exceeds 15 km from the origin to the destination within the same installation is considered a vicinity trip and not duty travel.

A1.1.2. With the exception of the cases listed in para.A1.1.3., duty travel has to be directed by issuing a travel order (DD Form 1610, *Request and Authorization for TDY Travel of DoD Personnel*). Supervisors will ensure that travel orders are issued before the start of the duty travel. Exceptions are only admissible under very special circumstances, if mission requirements or emergencies do not allow postponing duty travel until a travel order can be issued.

A1.1.2.1. A DD Form 1610 will be prepared in accordance with the provisions of AFI 33-328, as well as the pertinent supplementary guidance by HQ USAFE. Other provisions of AFI 33-328, to include amendments as well as the provisions of Chapter 4 of the Joint Travel Regulations, Volume II (JTR), in regard to preparation, distribution, and validity of travel orders will be applied unless they are in contradiction to CTA II, App. R and the implementation provisions in this instruction.

A1.1.2.2. Block 16 of DD Form 1610 will list CTA II, App. R and this instruction as the basis for payment of travel expenses or other allowances. USAFE Form 264, *Temporary Duty Back for Non-US Citizen Personnel (Germany)*, (to be used as the reverse to DD Form 1610) contains a list of frequently occurring authorizations, requirements, and restrictions. The pertinent reference numbers are to be listed in block 16 of DD Form 1610. Other authorizations/restrictions such as day-/night allowance, authorization for reimbursement of actual hotel costs, or authorization of a rental car also have to be annotated in block 16.

A1.1.2.3. Group travel of at least three employees may be directed by issuance of letter orders if data referred to in paragraphs A1.1.2.3.1 through A1.1.2.3.5 below is identical for all employees. For this purpose, a DD Form 1610 may be used as well. The obverse of a letter order shall contain the same information as printed on a DD Form 1610 or the data that would have to be entered for an individual travelling. On the reverse, all travelers have to be listed by name and with the required personal and official data as follows:

A1.1.2.3.1. Type of duty travel reimbursement.

A1.1.2.3.2. External duty location or locations, dates of departure and completion of duty travel.

A1.1.2.3.3. Furnishing of quarters and/or meals.

A1.1.2.3.4. Mode of travel.

A1.1.2.3.5. Incidental expenses.

A1.1.3. Generally, a DD Form 1610 is not required for one-day duty travel in country or a vicinity trip. In these cases, travel expenses will be calculated and reimbursed using USAFE Form 594. The procedures as well as the respective pay categories are established in USAFEI 36-709, *Time and Attendance Reporting for Non-US Citizen Employees*.

A1.2. Duration of Duty Travel, Para.R-I.2.:

Duty travel begins with the departure from the directed point of departure and ends upon return to the directed destination. The employing agency establishes the point of departure and the destination of duty travels. If a DD Form 1610 is issued, block 11 has to be filled out accordingly. If the employee's domicile is outside his permanent duty station, these locations are established as follows:

A1.2.1. The place of duty will be considered the point of departure if the employee has to report to the employing agency before beginning the duty travel or if the distance between the destination and the place of duty is shorter than the one between the destination and the employee's domicile.

A1.2.2. The employee's domicile will be considered the point of departure if the distance between the employee's domicile and the destination is shorter than the one from the place of duty or if it is in the interest of the employing agency in regard to the completion of business, comparable costs, or other considerations. Generally, the domicile from which the employee normally commutes to the place of duty will be the point of departure and return, and it is irrelevant if it is the primary or secondary residence.

A1.2.3. The point of departure and the point of completion of duty travel may differ if it is in the interest of the employing agency.

A1.2.4. The destination of the duty travel in the meaning of para.R-I.2b may be another external duty station or the point of completion of the travel. Regarding the requirement of an overnight stay, refer to the provisions on para.R-III.2.a.) in para.A3.1.1.

A1.2.5. The requirement according to para.R-I.2c to immediately notify the employing agency of each interruption of the duty travel is met if the employee notifies his employing agency without willful or negligent delay. Generally, this notification should be done by telephone.

A1.2.6. For duty travel extending over a weekend or other off-duty days, the return to the point of completion of the travel may be directed for the off-duty days if the official business does not require the employee to remain at the destination and the travel expense compensation is 25% less than the travel expense compensation that would have to be paid otherwise (i.e. if the employee had stayed at the external duty station over the weekend).

A1.2.6.1. If the employee remains at the external duty station even though he was directed otherwise, the travel expense compensation will be paid that the employee would have received if he had complied with the directive.

A1.2.6.2. If the above mentioned minimum percentage of cost savings is not achieved the employee may be allowed to return on weekends and other off-duty days upon request. In this case, the travel expense compensation and the day allowance will be paid up to the amount the employee would have received as travel allowance if he had stayed at the external duty station.

A1.2.6.3. A directive or authorization of an intermediate return to the permanent duty station or residence has to be annotated on the DD Form 1610. Such an interruption is not considered to be a termination of the duty travel and there is no need to issue a new DD Form 1610 if the employee resumes his duties at the external duty station on the next regular duty day.

A1.3. Pay during duty travel, para.R-I.3.: For the duration of the duty travel the employee continues to receive his regular pay as well as the pertinent tariff allowances for overtime work, night work, and work on Sundays and holidays performed during the duty travel.

A1.3.1. Time spent travelling is not work time and therefore will not be considered in the determination of overtime work, night work, and work on Sundays and holidays. As a principle, duty travel shall be directed in such way that travel time will be spent during the employees' regular duty hours and not during their off-duty time.

A1.3.2. In accordance with para.R-I.3.b) (3), employees who are directed to perform duty travel on an otherwise off-duty Saturday, Sunday, or a German legal holiday, i.e. who are travelling to or departing from the destination, will receive a lump sum compensation amounting to the basic pay for 4 hours. It will not be paid for off-duty or travel-free Saturdays, Sundays, or German legal holidays that fall within the period of duty travel. This lump sum compensation which does not constitute a compensation for hours actually worked applies to all employees including those employees who are paid in accordance with a special salary tariff.

A1.3.3. In deviation from para.R-I.3.b), para.R-I.3.c) establishes that motor vehicle operators will be compensated for overtime work, night work, work during Sundays and holidays that is performed during travel times (time spent driving) if they are required by their mission or upon directive by the employing agency to perform work or be on stand-by. This applies to operators of government owned vehicles. This exceptional provision also applies to other employees who, upon directive by the employing agency, operate a privately owned vehicle (POV) to transport persons, goods, or items – excluding items such as a briefcase or own work documents or similar – in accordance with their mission (note to the minutes on para.R-I.3.c). This has to be annotated on the DD Form 1610 with a corresponding remark. Employees who use a POV for personal reasons will not be reimbursed for travel times outside their regular work times.

A1.4. Travel Expense Compensation, Para.R-I.4.: For additional expenses incurred due to duty travel, the employee will receive: Mileage compensation, travel allowance (day allowance, night allowance), as well as reimbursement of documented incidental expenses.

A1.4.1. The employee is required to heed the directives regarding the travel itinerary and the mode of transport. If no directives were issued the employee is required to use the most economical travel itinerary. Generally, the most direct and shortest route is also the most economical. However, additional factors such as road conditions, the number of towns to be travelled through, the factor of time, and similar aspects may make a longer distance more economical, e.g. if an external duty station may be reached faster via a longer highway connection.

A1.4.2. In accordance with sentence 2 of para.R-I.4.c, travel allowance will not be paid for the stay at an employee's place of residence or within a distance of less than 15 kilometers (shortest usable road connection) from an employee's domicile even though it is duty travel by name. The reimbursement of mileage and incidental expenses remains unchanged.

A1.4.3. Incidental expenses will be reimbursed if they were required for the performance of the external official business or for conducting the duty travel and the amount was unavoidable.

A1.4.3.1. If incidental expenses are claimed, they have to be documented completely with bills or receipts; incidental expenses for which one usually can't obtain a receipt (such as telephone costs incurred by using a public phone, parking meter fees) require a pertinent personal statement.

A1.4.3.2. The use of a taxi during the performance of official business is admissible if neither means of free transport nor public transportation are available or if the use of such transportation would be inexpedient under the given circumstances. The pertinent supervisor is responsible for reviewing if the prerequisites for using a taxi were met.

A1.4.4. Travel expenses will be reimbursed after completion of the duty travel. To that end, the employee will immediately send a travel expense voucher (USAFE Form 832, *USAFE Travel Expense Voucher (Non-US, Germany)*) via the responsible Civilian Personnel Flight to the Controlling and Services Direction / Foreign Forces Payroll Office (CSD/FFPO). Travel expense vouchers not submitted via the personnel office will be returned by the CSD/FFPO.

A1.4.5. The timelines of Art.49, CTA II are applicable, i.e. the entitlement to travel expense reimbursement expires if not requested within 3 months after the completion of duty travel.

A1.4.6. An advance travel expense reimbursement may be requested with USAFE Form 832 (block 11). A completely filled out and signed USAFE Form 832 is considered a payment authorization if no travel order (DD Form 1610) is at hand to ensure a timely processing of the advance payment. The request shall be received at the CSD/FFPO at least 3 days before the start of the duty travel. The employing agency and/or the CSD/FFPO determines the amount of the advance travel expense reimbursement. The FFPO immediately transfers the advance payment funds to the employee's bank account.

A1.4.7. Travel expense reimbursement for group travel that was directed with a collective travel order (letter order) may be processed using a multiple invoice (i.e. USAFE Form 832 and attached roster.) On the USAFE Form 832, a reference to the attached roster will be annotated instead of the traveler's name, address, and signature. On the roster, the employees listed on the letter order will be listed in numerical sequence with full name, grade, and bank account number. Each employee will sign a statement confirming the correctness of the entries made in USAFE Form 832.

Attachment 2

REIMBURSEMENT OF TRANSPORTATION COSTS

The implementation provisions contained in this Attachment refer to provisions of Attachment R, Part II, CTA II.

A2.1. Para.R-II.1, Mode of Transportation: The supervisor directing the duty travel or the transportation officer determines the mode of transportation. This includes military aircraft scheduled and used for transportation of personnel. If it is determined that the use of a military aircraft is most advantageous for the effective execution of duty travel the employee affected by such a decision has the option to perform the travel using public or private means of transportation or the own motor vehicle unless prohibited by special mission requirements. However, transportation costs will only be reimbursed up to the amount the agency would have incurred by using a military aircraft. Under no circumstances may an employee be forced to use an aircraft for duty travel if prohibited for medical reasons and credibly documented by submission of a medical certificate.

A2.2. Para.R-II.2, Use of Privately Owned Vehicle (POV): Utilization of a POV may not be directed for the execution of official business but it may be authorized if it is more advantageous to the Government. Here, the supervisor directing the duty travel has to consider the advantages and disadvantages, comparable transportation expenses, the travel allowances to be paid, and the reimbursable incidental expenses, such as:

A2.2.1. Official business requirements, including the transportation of luggage, tools, and equipment.

A2.2.2. Availability of other means of transport and the effects on the time of productivity in relation to the time of travel.

A2.2.3. Location of the official business in regard to traffic conditions, travel route, and weather.

A2.2.4. Location of the external duty station in regard to the location of the lodging/dining facilities and the availability of other than private means of transport between these locations.

A2.2.5. Advantages in regard to the total expenses if passengers are travelling in the same POV on official business.

A2.2.6. Wage/salary costs resulting from additional travel time and the physical demands on the employee (with possible reduction of performance) if the duty travel requires travelling of significant distances.

A2.3. If it is determined that the use of a POV is more advantageous for the employing agency, the employee is entitled to:

A2.3.1. Payment of mileage allowance for the authorized distance or other routes specified in DD Form 1610 between the external duty location(s) and the permanent duty location or residence. In cases of POV travel to and from an airport or train station, the double distance (POV travel for pick-up and drop-off) may be authorized.

A2.3.2. Payment of mileage allowance for travels at the individual external duty location that are required in the performance of official business.

A2.3.3. Reimbursement of expenses for parking fees on the way and at the individual external duty station, as well as fees for using ferries, bridges, roads, and tunnels.

A2.4. If the employee is authorized to use his POV exclusively upon his request expenses will be reimbursed only up to the amount of expenses for the means of transportation the employing agency would have provided or authorized for the travel between the permanent duty station (residence) and the external duty station or stations. If the employee had had to use short-distance transportation at the external duty station (to include travels between the train station / hotel / external duty station) he will also be paid mileage allowance for the distances that he would have travelled otherwise with these means of transportation. This compensation will be paid together with the limited amount specified in sentence 1.

A2.5. The authorization to use a POV for travelling, of special travel itineraries, and possible travels at the external duty station has to be annotated on the DD Form 1610. If the requirements of the above paragraph A2.3. are met the appropriate box has to be checked in block 12 of the DD Form 1610 and a reference to No. 7 on the reverse (USAFE Form 264) be made with the additional specification of the mileage allowance rate (if applicable to include the increase for transportation of passengers). In case the conditions of paragraph A2.4. above are met, do not check block 12 of DD Form 1610 but instead only enter a reference to No. 8 on the reverse. Additionally, the means of transportation that would have been authorized by the employing agency for the travel by surface or air have to be annotated in block 16, as well as the maximum amount for the payment of the mileage allowance.

A2.6. The employee will record travels with a POV at the external duty station on USAFE Form 832 individually, each time listing date, itinerary (from – to), and number of kilometers.

A2.7. Passengers in POVs do not receive travel expense compensation. They will enter "PAS" as the means of transportation in USAFE Form 832.

Attachment 3

TRAVEL ALLOWANCE FOR DUTY TRAVEL OF SEVERAL DAYS AND DAY ALLOWANCE FOR ONE-DAY DUTY TRAVEL

The implementation provisions contained in this Attachment refer to provisions of Attachment R, Parts III and IV, CTA II.

A3.1. Travel allowance for duty travel of several days. The travel allowance for duty travel of several days is comprised of the day allowance (Part III, para.1) and the night allowance (Part III, para.2).

A3.1.1. Night allowance. A night allowance IAW para.R-III.2.a) will be paid for each overnight required.

A3.1.1.1. For duty travel of several days an overnight before the beginning of the official business is required if the travel time would significantly exceed the time between the start of the regular work time and the beginning of the official business as established without contribution of the employee. If the official business starts on a Monday or a work day following a German legal holiday it should be scheduled, in consideration of the provisions of para.R-I.3.b), to start at a time that allows the travel to the duty location during the employee's regular work hours on this day.

A3.1.1.2. Whether an overnight is required after the termination of the official business depends on the provisions of para.R-I.2.b. These require the employee to continue travelling or return on the same day after completion of the official business if the official business or the travel to and the official business did not take more than ten hours and the employee is able to reach the destination before 22:00 hrs.

A3.1.1.3. Night allowance will not be paid if no overnight is required because the travel and/or departure was conducted at night.

A3.1.2. Additional expenses for an earlier travel or later return not required by the official business will not be reimbursed. An earlier travel or later departure for personal reasons should be annotated on the DD Form 1610 to the extent possible. Travel allowance may only be authorized based on the requirements of the official business. This does not affect the payment of mileage allowance. Personal travel times deviating from the duty travel itinerary will also be annotated on the travel expense voucher.

A3.1.3. The employing agency will determine the maximum rates for overnights for the individual localities in accordance with the rates listed in the Joint Travel Regulations (JTR), Vol.II., App.B (**http://www.defensetravel.dod.mil/perdiem/perdiemrates.html**) and the pertinent entry in DD Form 1610. The rate listed for the category "Other" will be applied if the particular duty travel destination is not listed in the JTR. The Dollar amounts have to be transformed into Euro amounts using the official, four-digit decimal currency exchange rate available on the Internet under **http://www.21tsc.army.mil/266Finance/Exchangecalculator/Default.asp** .

A3.1.3.1. In exceptional cases where under consideration of previous experience and other cost information, or because particularities of the official business require the use of lodging facilities above the regular price level, the maximum amount listed in the JTR is insufficient, the supervisor directing the duty travel may authorize a higher rate. The following remark in block 16 of DD Form 1610 will serve as the payment authorization:

"The reimbursement of actual overnight expenses for each required overnight is authorized."

A3.1.3.2. For the reimbursement of required hotel expenses not anticipated before the duty travel a pertinent amendment of the initial DD Form 1610 has to be issued based on a written statement to be provided by the traveler. In any event, the reimbursement amount on the travel expense voucher has to be substantiated by adding the hotel bill(s).

A3.1.4. Expenses for meals. Expenses for meals are not included in the total amount of the night allowance. If the expenses for meals are separately listed on the hotel bill, the corresponding amount has to be deducted from the total amount. If the expenses for meals are included in the hotel bill, a reduced amount is to be reimbursed in accordance with the note to the minutes on para.R-III.2.a.

A3.1.5. Free lodging. Night allowance will not be paid if the U.S. Forces provide the employee with own lodging facilities. This is to be annotated on the DD Form 1610. The use of free lodging may only be directed if it meets the general standards (c.f. para.R-III.2.b.(2)). Night allowance will be paid if the employee has agreed to use free lodging that does not meet general standards.

A3.2. Day allowance for one-day duty travel. The provisions on day allowance for one-day duty travel (R- IV, CTA II) also apply if the employee's work orders require him to regularly work 15 kilometers or more outside his permanent duty station with a daily return (para.R-I., no.1a). Entitlements to reimbursement of travel expenses will be requested in accordance with USAFEI 36-709.

Attachment 4

REIMBURSEMENT OF EXPENSES FOR FOREIGN DUTY TRAVEL

On the basis of CTA II, Attachment R, Part V, this Attachment establishes guidelines for the reimbursement of travel expenses for duty travel outside Germany. Generally, the tariff provisions for duty travel within the Federal Republic of Germany are applicable, as well as the pertinent implementation provisions contained in appendices A, B, and C to this instruction unless they are changed or amended by the provisions of this Attachment.

A4.1. One-day duty travel. For one-day duty travel outside Germany a duty travel order (DD Form 1610 in connection with USAFE Form 264) is required.

A4.1.1. The applicable day allowance rates will be established by the directing agency as follows: The tax exemption amount for the individual country in which the official business has to be conducted will be selected. The rates may be queried on the Internet under **http://www.bundesfinanzministerium.de** by searching for the term "Auslandsdienstreisen". If the duty travel is conducted to several countries the amount for the last country in which official business is conducted is selected. The pertinent entry (lump sum amount for additional meal expenses for the full calendar day) will be made in block 16 of DD Form 1610.

A4.1.2. The payable day allowance will be calculated by the CSD/FFPO on the basis of the rate specified in para.A4.1.1. depending on the following periods of absence:

For absences of	**Percentage of the German tax exemption amount applicable to the individual country or the specified amount in Euro**
8 hours or more	33% or at least € 8.00
12 hours or more	33% or at least € 14.00
14 hours or more	66% or at least € 14.00

A4.2. Several-days duty travel. The directing agency determines the day allowance and the maximum amounts for night allowance as follows and enters the corresponding rates in Euro (see above – A3.1.3. for exchange rates) in block 16 of DD Form 1610:

A4.2.1. The day allowance is established according to the individual Local Meals Rate and Local Incidental Rate for the individual country/location as specified in the Joint Travel Regulations (JTR).

A4.2.2. The maximum night allowance rate corresponds to the Maximum Lodging Rate for the individual country/location. The individual rates for CONUS and OCONUS may be queried on the Internet under **http://www.defensetravel.dod.mil/perdiem/pdrates.html**.

A4.2.3. The amount of day allowance is not based on actual expenses. If the calculation of the day allowance per the JTR results in a total lower than the day allowance amount for duty travel within Germany, the latter amount is to be applied.

A4.2.3.1. On the first day of travel as well as on further travel days, the country one arrives at before 12:00 a.m. (local time) is decisive for establishing the binding day allowance rate. For the calendar day when the duty travel ends, the rate for the last

location in the country outside Germany where official business has been conducted is binding. If the return travel takes several days the applicable rate is that of the respective country that was reached before 12:00 a.m. (local time). If the duty travel is conducted by plane, the country is considered reached at the time of landing.

A4.2.3.2. For the first and the last day of duty travel the payable day allowance rate will be calculated by the CSD/FFPO based on the following times of absence:

For absences of	**Percentage of the Day Allowance (JTR rate) or the specified amount in Euro**
8 hours or more	50% or at least € 12.00
12 hours or more	100% or at least € 24.00

The employee is required to submit receipts on the expenses for overnights to claim night allowance. For each overnight not substantiated by a receipt only, the night allowance rate for duty travel in Germany as specified in R-III.2.a. will be reimbursed. Overnight expenses that exceed the JTR rates require, if possible, prior approval and a corresponding annotation on the DD Form 1610. The approval may be granted – possibly also after the fact – by the Civilian Personnel Officer or a supervisor in a corresponding function and depends on the submission of adequate proof or a written statement regarding the unavoidability of expenses in excess of the JTR rates.

A4.3. Insurances and other reimbursable expenses:

A4.3.1. The employee is required to take out a health insurance for the duration of the foreign duty travel if the travel lasts longer than one day or if one-day duty travels occur frequently. A note on this requirement is to be annotated in block 16 of DD Form 1610. The expenses for such a health insurance will be reimbursed upon submission of the pertinent receipts.

A4.3.2. Cost for vaccinations, passport, visa, and other required travel documents will be reimbursed.

A4.3.3. Other, unforeseeable expenses the employee incurs in direct relation with the duty travel and beyond his control will be reimbursed upon submission of corresponding certificates.

Attachment 5

EXPENSES FOR TRANSPORTATION OF REMAINS OF DECEASED EMPLOYEES

A5.1. If an employee dies while on duty travel in-country or abroad, an eligible family member will be reimbursed for the expenses for transportation of the remains to the extent these are not covered by an insurance. If there is no family member to take care of the transportation and funeral another authorized person may receive the reimbursement.

A5.2. Reimbursable costs are:

A5.2.1. Expenses for the transportation from the location of death to the location of the funeral or cremation or to the last residence of the deceased if the distance is less.

A5.2.2. Incidental expenses, such as for the one-time preparation of the corpse for transportation, a possibly required metal coffin, as well as transportation documents required for crossing borders.

A5.3. The substantiated actual expenses minus the due payments by other cost authorities (e.g. legally prescribed or private insurances) will be reimbursed.

A5.4. The Civilian Personnel Office will contact the surviving dependents of the deceased employee and advise them of the possibility of cost reimbursement upon furnishing of pertinent proof. The required receipts (original bills and possibly other certificates) have to be submitted to the last employing agency of the deceased and from there will be forwarded with a confirmation to the Civilian Personnel Office. After proper review it will issue a payment authorization via AF Form 825, *Notification of Personnel Action (Non-US (Germany))*.

Attachment 6

DUTY TRIPS

This Attachment contains the implementation provisions on Attachment R, Parts VI, CTA II.

A6.1. Definition of duty trip. Conducting external business constitutes a duty trip if the prerequisites of duty travel in the meaning of R-I.1.a. are not met because:

- the external duty station is at a distance of less than 15 km from the departure location, or
- the external duty station is at a distance of more than 15 km from the departure location but is inside the same community or within the same large-scale installation as the employee's permanent duty station.

A6.2. Expenses for commercial or public transportation (restricted to the amount for the most advantageous, available means of transportation), expenses for approved travels with the privately owned vehicle (POV) and incidental expenses such as parking fees or fees for official telephone calls will be calculated and reimbursed using USAFE Form 594. It will be filled out for each month and submitted with the time and attendance list. The reimbursement will take place together with the payment of earnings.

A6.2.1. On the USAFE Form 594, expenses have to be annotated individually with the date and the following information:

A6.2.1.1. The kind and fare of the public transportation (original tickets or other original receipts have to be added).

A6.2.1.2. The itinerary (from-to) and distance in kilometers if the POV is used.

A6.2.1.3. Type, amount, and individual cost of incidental expenses. Original receipts have to be added.

A6.2.1.4. If a receipt cannot normally be obtained (e.g. if parking meters or public telephones are used) the employee will add a written statement on the expenses incurred.

A6.2.1.5. USAFE Forms 594 submitted by full-time released works council members will be signed by the same agency representative who is also responsible for signing the pertinent time and attendance lists.

A6.2.2. For the reimbursement of expenses in accordance with this Attachment the issuance of a DD Form 1610 is not required.

Attachment 7

PAYMENTS IN CASES OF TRANSFERS OR APPOINTMENTS FROM OUTSIDE THE COMMUTING AREA

A7.1. General. This Attachment contains guidance and procedures in reference to out-of-tariff payments incident to transfers or appointments of employees from outside the commuting area. The commuting area is defined in accordance with Art. 4, para.4.d) of the Tariff Agreement on Protection from Rationalization Measures, Termination, and Protection of Income (Protection Agreement).

A7.2. Principles and Requirements.

A7.2.1. The below listed payments may be considered if an employee is transferred or appointed from outside the commuting area of the new duty station and the measure is in the best interest of the pertinent employing agency. In particular, this may be the case if the following requirements are met:

A7.2.1.1. A position that is essential for mission accomplishment is to be filled and qualified applicants or applicants that could be trained within a reasonable timeframe for the tasks are not available within the commuting area of the employing agency.

A7.2.1.2. An employee is transferred with his position duties or with his agency to another location.

A7.2.1.3. An employee affected by a reduction-in-force is being transferred within the framework of the Protection Agreement to another duty station outside the commuting area.

A7.2.1.4. In case of reduction-in-force and closure of the installation (see above A7.2.1.3.) the payments under this Attachment are mandatory if the other prerequisites are met and if the employee's residence is also outside the commuting area of the new duty station.

A7.2.1.4.1. The necessary expenses have to be borne by the losing employment agency. If applicable, the monies earmarked for the closure of the installation have to be used and allocated to the agency that is administratively responsible for the measures that have to be performed after the closure.

A7.2.1.4.2. In case of transfer of the spouse or other family members living in the same household who are also employed with the US Forces and who are transferred to the same new duty station only one person is eligible for the payments in accordance with the below paragraphs A7.3. through A7.8. The employees will determine who should claim and receive the payments.

A7.2.1.5. In the other cases (A7.2.1.1. and A7.2.1.2.), the Civilian Personnel Officer, in coordination with the chief of the employing agency, may approve the benefits listed in this attachment if an employee is transferred or appointed from outside the commuting area of the new duty station and if this measure is in the best interest of subject agency.

A7.3. Travel Expense Compensation. A travel order may also be issued for a one-time travel to and from a proposed new duty station so the employee may introduce himself there. The disbursement will be executed on the basis of a USAFE Form 832 with the travel order attached.

A7.4. Reimbursement of Moving Expenses. An employee may be reimbursed expenses for moving (realtor fees, transportation expenses, and incidental expenses) if he maintained a residence outside the commuting area of his new duty station and moves into the commuting area of the duty station within 12 months after the appointment or transfer. The employing agency may extend this period if the move was delayed for justifiable personal reasons beyond the employee's control and the anticipated moving date has been established. Extensions will be documented on an AF Form 825 and are limited to a maximum of 1 year in individual cases. Employees requiring a residence permit / work permit may only be reimbursed for moving expenses if their permit is valid for at least another 12 months after the day of the move. The authorization of the reimbursement of moving expenses expires if the employment relation ends before the employee has moved.

A7.4.1. **Realtor Fees.** Realtor fees may be reimbursed up to a maximum of the net amount of two month's rent.

A7.4.2. **Transportation Expenses.** An employee may be reimbursed for transportation expenses upon request. The authorization will be annotated on the transfer order. For new appointments, the authorization as well as restrictions that have to be considered will be annotated on the AF Form 825 that establishes the employment relation.

A7.4.2.1. The reimbursement of transportation expenses for moving items is restricted to 50 cubic meters for singles and 100 cubic meters for married employees / registered cohabitants. Reimbursable transportation expenses include customs fees for the moving items as well as value added tax as indicated on the invoice.

A7.4.2.2. Considering that the transportation of moving items by a contract carrier of the US Air Forces (via the local transportation office – TMO) is less expensive, this option should be used for all transfers, unless special circumstances warrant the application of a reimbursement procedure on the basis of invoices by a private carrier. Before initiating a move via the TMO, the Civilian Personnel Officer has to ensure that the employee is advised of the valid provisions and procedures. This also includes the liability for damages on part of the carrier, as well as the procedures for claiming damages.

A7.4.2.3. The limitation of the cubic measure applies to transportation of moving items by a private carrier as well as by an Air Force contract carrier. The Commander/Chief of the employing agency may authorize an exception to this limitation if warranted due to the number of family members or the size of the household. A pertinent request by the employee providing the reasons and the required cubic measure must be submitted and approved before the move.

A7.4.3. **Incidental Expenses.** To cover incidental expenses (e.g. required procurement of curtains, carpets, paint or installation works) a one-time lump sum may be authorized. The maximum rates for the lump sum are as follows: Euro 1,050.00 for married employees / registered cohabitants; Euro 525.00 for all other employees. These rates will increase by Euro 231.00 for each single child, stepchild, or foster child who continues to live together with the employee in a joint household.

A7.4.4. **Payment.** For the reimbursement of expenses in accordance with the provisions of this section (moving expenses) the employee has to submit the travel order, original invoices, and other required original receipts to the responsible CPF. The FFPO will do the calculation and initiate disbursement on the basis of the payment authorization initiated by the CPF.

A7.4.5. **Return to the Initial Residence after Reduction-in-Force.** If the employment of an employee who was reimbursed for the expenses for moving to his new duty station is terminated within 24 months after his transfer or appointment for operational reasons due to reduction in force, the employee will be reimbursed the expenses for moving to the vicinity of his previous residence. This entitlement expires if the move is not executed within 6 months after the termination of the employment relation.

A7.5. Overnight Expense Allowance. An overnight expense allowance may be authorized for employees if they are willing to move without restrictions and occupy non-gratuitous accommodation at the new duty station.

A7.5.1. At the time of transfer or appointment, the employee will sign a statement that he is willing to move without restrictions and will report all circumstances affecting the receipt of the overnight expense allowance to the responsible personnel office without delay.

A7.5.2. The overnight expense allowance may be paid from the first day of employment at the new duty station until the day of the move to the new residence, but not to exceed 365 days.

A7.5.3. The overnight expense allowance rate for one calendar day is Euro 14.00. If the substantiated overnight expenses are lower than the daily overnight expense allowance rate multiplied with the number of calendar days of the corresponding month, only the actually substantiated overnight expenses will be reimbursed.

A7.5.4. The overnight expense allowance will be reclaimed and set off against the monthly pay if the employee does not move within the prescribed period. It is cancelled on the day of the move or if the employment relation is terminated.

A7.5.5. Employees may receive a travel expense allowance once a month for travelling to their permanent residence and back in accordance with below para.A7.6. Expenses for travelling home will not be reimbursed for months the employee spent less than 15 calendar days at the new duty station.

A7.6. Commuters Allowance. Employees who have stated in writing that they are willing to move without restrictions but do not have accommodation at the new duty station and return to their permanent residence every day will receive a travel expense allowance. The basis for calculating the travel expense allowance is the difference between the kilometers travelled from the residence to the old duty station and back and the commute to and from the new duty station.

A7.6.1. Regardless of the mode of transportation, the commuters allowance is Euro 0.18 per calculated kilometer.

A7.6.2 The daily commuters allowance may not exceed the amount of the overnight expense allowance per work day.

A7.6.3. The allowance will be authorized on AF Form 825 and is limited to 12 months beginning on the effective date of the transfer. The disbursement will occur together with the employee's monthly earnings. Payment will be cancelled after the expiration of the

authorized period without prior notice. If the employee no longer incurs any travel expenses before the expiration of 12 months the payment will be cancelled using an AF Form 825.

A7.7. Housing Allowance. Employees who have not exhausted the full amount of the authorized overnight expense allowance may receive a monthly housing allowance under the following conditions.

A7.7.1. The rent for an appropriate domicile is higher than that at the previous residence and exceeds 18% of the employee's monthly basic pay at the time of authorization. The basis will be the net rental amount without utilities.

A7.7.2. The employee is not entitled to a rent subsidy in accordance with the Rent Subsidy Act and the rent is not borne jointly with other persons or members of the household. The employee will provide a written, binding statement to this effect.

A7.7.3. The total amount of the housing allowance may not exceed the total amount of the overnight expense allowance for 365 calendar days minus the already paid amounts of overnight expense allowance or travel expense allowance. The remaining overnight allowance of the employee that is to be paid as a monthly housing allowance will be Euro 150.00 as a minimum. Lesser amounts will be disbursed to the employee as a one-time lump sum.

A7.7.4. The housing allowance paid will be the amount that the rent exceeds 18% of the monthly basic pay. If this calculation results in a monthly amount of less than Euro 50.00 however, a monthly minimum amount of Euro 50.00 will be paid until the remaining sum is exhausted. (E.g.: A remaining amount of Euro 175.00 will be distributed to 3 monthly amounts of Euro 50.00, Euro 50.00, and Euro 75.00.)

A7.7.5. If the employee purchases a house or a condominium at the new duty station the locally customary rental amount is determined based on the local rental index to calculate the housing allowance. The same procedure will be applied for employees who were in possession of a house or an apartment at the old duty station.

A7.7.6. The housing allowance will be paid from the first full calendar month during which the new domicile is occupied until the remaining amount of overnight expense allowance that the employee is entitled to is exhausted. In any event, the payment of housing allowance is stopped the month the employment is terminated.

A7.7.7. The employee will submit the request for housing allowance with or as an attachment to USAFE Form 52 together with a copy of the rental contract via his employing agency to the personnel office. The approval and disbursement authorization will be effected with AF Form 825. It will indicate the monthly allowance amount as well as the duration of payment.

A7.8. Lump Sum Expense Compensation. Employees maintaining an own household who cannot or do not want to relocate to the new duty location may be granted a lump sum expense compensation. The employee has to substantiate and, if applicable, provide evidence on the increased expenses. The lump sum expense compensation amount is Euro 1,200.00. The employee has to agree in writing that he will pay back the lump sum expense compensation in the event he resigns from his employment or if the employment is terminated for cause within 12 months after transfer or appointment.